

6. BOONE v. KHERA, ET AL., 24CV1765**(A) Motion to Compel Further Responses to Request for Production****(B) Motion to Compel Compliance with Response to Request for Production**

On June 22, 2026, plaintiff Scott Boone (“plaintiff”) filed two separate discovery motions⁵ against the following defendants: (1) Gurpreet Khera; (2) Harinder Khera; (3) K.P. Investments, LLC; and (4) AKS Equities, Inc. (collectively, “defendants”).

The first motion is a motion to compel each defendant’s further responses to Request for Production (“RFP”), Sets One and Two (specifically, RFP Nos. 1–17, 22, 28–33, and 39–40 (see, Mtn. at 13:9–10)). The second motion is a motion to compel defendants’ compliance with “their agreement to produce documents” in response to RFP Nos. 1–12, 18–21, 23–27, and 34–40. (Mtn. at 1:9–12.) Both motions include a separate request for a monetary sanction in the amount of \$10,310.

On August 10, 2026, defendants filed a single opposition directed at both motions.

On August 12, 2026, plaintiff filed a single reply brief for both motions.

On August 18, 2026, defense counsel filed a supplemental declaration.

1. Procedural Background

On April 9, 2025, plaintiff electronically propounded RFP Set One upon each of the four defendants. (Mazzola Decl., filed June 22, 2026, ¶ 6.) On June 12, 2025 (after receiving a 30-day extension), each defendant served an unverified response to RFP Set One. (Mazzola Decl., filed June 22, 2026, ¶¶ 7, 8 & Ex. 2.)

Plaintiff met and conferred with defense counsel regarding the outstanding verifications, as well as alleged deficiencies with the responses. (Mazzola Decl., filed June 22, 2026, ¶ 9.) Defendants granted plaintiff an open extension to file a motion to compel. (Mazzola Decl., filed June 22, 2026, ¶ 9.) Defendants told plaintiff they would serve amended responses, but did not.

⁵ On June 25, 2026, plaintiff filed amended notices of both motions. However, there do not appear to be any substantive changes in either of the amended notices.

On October 23, 2025, without having received verifications or amended responses to RFP Set One, plaintiff served a single notice of deposition to defendants KP Investments' and AKS Equities' person most qualified ("PMQ"), which allegedly included the same request for production of documents as RFP Set One. (Mazzola Decl., filed June 22, 2026, ¶ 12 & Ex. 6.) On Day One of deposition (November 10, 2025), the parties produced defendant Gurpreet Khera⁶ as the PMQ, and produced some, but not all, of the requested documents in the notice of deposition. (Mazzola Decl., filed June 22, 2026, ¶¶ 13, 14.) Gurpreet and his attorney "agreed on the record at the PMQ deposition to produce several categories of documents that had already been requested in [plaintiff's RFP Set One]." (Mazzola Decl., filed June 22, 2026, ¶ 15.)

The parties agreed to continue Day Two of the deposition to January 7, 2026. (Mazzola Decl., filed June 22, 2026, ¶ 15.) On January 5, 2026, defense counsel produced 17 documents⁷ in anticipation of the continued PMQ deposition. (Mazzola Decl., filed June 22, 2026, ¶ 18.) During deposition on January 7, 2026, Gurpreet and his attorney agreed on the record to provide to plaintiff "certain documents" responsive to RFP Set One. (Mazzola Decl., filed June 22, 2026, ¶¶ 18, 19.)

On March 10, 2026, plaintiff propounded RFP Set Two upon each of the four defendants, requesting (1) the documents that Gurpreet and his attorney identified during both days of the PMQ deposition and agreed to provide; and (2) the settlement agreement with Liberty Mutual Insurance.⁸ (Mazzola Decl., filed June 22, 2026, ¶ 20.)

On April 13, 2026, defendants produced additional documents. (Cronican Decl., ¶ 3; Mazzola Decl., filed Aug. 12, 2026, ¶ 5.) However, the parties dispute what was included

⁶ For clarity, the court will refer to defendants Gurpreet Khera and Harinder Khera using their first name only. The court intends no disrespect.

⁷ It is unclear to the court what documents were produced and whether any of said documents were responsive to RFP Set One.

⁸ Liberty Mutual is plaintiff's insurance carrier. Liberty sued some of the defendants to recoup its funds in the subrogation action — Case No. 24CV1766 — which has been consolidated with the instant case. (Mtn. to Compel Compliance, at 2:5–8.)

in the April 13 production. Defense counsel declares the production included “photographs responsive to the requests, the Settlement Agreement ..., as well as additional documents related to the construction as requested by Plaintiffs.” (Cronican Decl., ¶ 3.) Plaintiff’s counsel declares the production included photos and videos but not the settlement agreement. (Mazzola Decl., filed Aug. 12, 2026, ¶ 5.)

On April 14, 2026, defendants served unverified responses to RFP Set Two and produced some, but not all, of the requested documents. (Mazzola Decl., filed June 22, 2026, ¶ 21.)

On May 7, 2026, defendants Gurpreet and AKS Equities each served verifications for their responses to RFP Set Two. (Mazzola Decl., filed June 22, 2026, ¶ 23.) Plaintiff’s counsel attempted to further meet and confer with defense counsel but received no response. (Mazzola Decl., filed June 22, 2026, ¶¶ 24, 25.)

On August 10, 2026, concurrently filed with their opposition to the instant motions, each defendant served their verification for their response to RFP Set One. (Cronican Decl., ¶ 4 & Ex. A.) Additionally, defendant Harinder served a verification for his response to RFP Set Two. (Cronican Decl., ¶ 4 & Ex. A.)

Defendants’ opposition further claims that, prior to the hearing, defendants will serve amended responses to RFP Sets One and Two. (Opp. at 2:16–20; Cronican Decl., ¶ 5.) On August 18, 2026, defense counsel submitted a supplemental declaration, indicating that defendants have served supplemental responses⁹ to RFP Sets One and Two, and acknowledging that defendant inadvertently failed to include the settlement agreement in its April 13 production.

⁹ The supplemental responses are verified. With respect to the supplemental responses, the clock for a potential motion regarding said responses begins anew. The substance of the supplemental responses is not presently before the court.

2. Discussion

A motion to compel is the procedure to enforce compliance with a demand for production of documents. Where no response at all has been made (including an unverified response), the motion is to compel a response. (Code Civ. Proc., § 2031.300.) Where responses have been made but they are not satisfactory to the demanding party, the motion is to compel further responses. (Code Civ. Proc., § 2031.310.) Where an agreement to comply has been made, but compliance is not forthcoming, the motion is to compel compliance. (Code Civ. Proc., § 2031.320.)

2.1. Motion to Compel Further Responses

Plaintiff's motion to compel further responses is made under Code of Civil Procedure section 2031.310. Plaintiff moves to compel defendants' further responses to RFP Sets One and Two.¹⁰

In support of the motion, plaintiff filed a separate statement related to RFP Set One only. (Cal. Rules Ct., R. 3.1345, subds. (a)(3), (c).) It appears to the court that each of the four defendants served virtually identical objections and responses to RFP Set One. (Mazzola Decl., filed June 22, 2026, Ex. 2.)

Attached to the declaration of plaintiff's counsel is a copy of defendant Harinder's response to RFP Set Two. (Mazzola Decl., filed June 22, 2026, Ex. 9.) However, plaintiff filed no separate statement related to RFP Set Two for any defendant. Therefore, the court denies the motion to compel further responses to RFP Set Two and proceeds to

¹⁰ Generally, there is a 45-day deadline to file the motion from the time the verified response was served (the deadline is extended if the response is served by mail, overnight delivery, or electronically). (Code Civ. Proc., § 2031.310, subd. (c).) However, the parties may extend the deadline by written stipulation. Plaintiff contends, and defendants do not appear to dispute, that defendants granted an open-ended deadline with respect to RFP Set One. Defendants Gurpreet and AKS Equities served verifications for their responses to RFP Set Two on May 7, 2026; and defendant Harinder served his verification to RFP Set Two on August 10, 2026. Thus, there appears to be no issue as to the timeliness of plaintiff's motion.

analyze the motion to compel further responses with respect to RFP Set One only. (See, *In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1296 [“When a motion fails to include a separate statement, a trial court is ‘well within its discretion’ to deny the motion.”].)

A motion to compel further responses may be made on any of the following grounds: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; and (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) Here, plaintiff’s motion is based on the ground that defendants’ objections lack merit.

The motion must set forth specific facts showing good cause justifying the discovery sought by the demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) The proponent of the discovery must explain how the evidence sought is relevant to a disputed material fact. (*Sosa v. CashCall, Inc.* (2020) 49 Cal.App.5th 42, 47.) If good cause is shown by the moving party, the burden shifts to the responding party to justify any objections made to document disclosure. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

Even assuming there is good cause for each of the disputed requests in RFP Set One, the court finds that each of the requests fails to designate the requested items with reasonable particularity. (Code Civ. Proc., § 2031.030, subd. (c)(1).) As an example, RFP No. 1 requests: “All WRITINGS relating to, evidencing, and regarding the construction, design, or engineering drawings, drafts or Computer Assisted Design (‘CAD’) files ... prepared for and/or used in the RENOVATION of the HOME.” It is not reasonable to describe documents by categories which require the responding party to determine (at risk of sanctions) which of its extensive records fit a demand that asks for everything in its possession relating to a specific topic. (See, *Calcor Space Facility, Inc. v. Superior Court* (197) 53 Cal.App.4th 216, 222.)

The motion to compel further responses is denied in its entirety.

2.2. Motion to Compel Compliance

Pursuant to Code of Civil Procedure section 2031.320, plaintiff moves to compel defendants' compliance with its agreements to comply with RFP Nos. 1–12, 18–21, 23–27, and 34–40.¹¹ As an initial matter, the court notes that the alleged agreements to comply made by defendant Gurpreet and his attorney during the PMQ deposition are not enforceable under Code of Civil Procedure section 2031.320.¹²

Having found in the previous section that the following requests do not describe the category of requested items with reasonable particularity, the court denies the motion to compel compliance with the same requests: RFP Nos. 1 through 12.

The remaining requests include RFP Nos. 18–21, 23–27, and 34–40.

With the exception of RFP No. 39, the court finds that all of the remaining requests fail to describe the category of requested items with reasonable particularity. (Code Civ. Proc., § 2031.030, subd. (c)(1).)

RFP No. 39 calls for the settlement agreement defendants entered into with Liberty Mutual on or around November 8 or 9, 2025, in the instant action (i.e., the consolidated subrogation action), as well as “all WRITINGS and COMMUNICATIONS relating to, evidencing, and regarding same.” Defense counsel’s declaration submitted August 18, 2026, admits that defendants inadvertently failed to produce the settlement agreement in their April 13, 2026, production. Therefore, the court grants plaintiff’s motion to comply with the portion of RFP No. 39 which calls for the settlement agreement. The court denies the motion with respect to the remaining portion of RFP

¹¹ Unlike a motion to compel further responses, there is no deadline to bring a motion to compel compliance under Code of Civil Procedure section 2031.320. (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1033.)

¹² Code of Civil Procedure section 2031.320, subdivision (a) provides: “If a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party’s statement of compliance, the demanding party may move for an order compelling compliance.”

No. 39, which requests “all WRITINGS and COMMUNICATIONS relating to, evidencing, and regarding same.”

TENTATIVE RULING # 6:

(A) MOTION TO COMPEL FURTHER RESPONSES: THE MOTION TO COMPEL FURTHER RESPONSES IS DENIED IN ITS ENTIRETY.

(B) MOTION TO COMPEL COMPLIANCE: THE COURT GRANTS PLAINTIFF’S MOTION TO COMPEL EACH DEFENDANT’S PRODUCTION OF THE SETTLEMENT AGREEMENT ENTERED INTO WITH LIBERTY MUTUAL INSURANCE COMPANY ON OR ABOUT NOVEMBER 8 OR 9, 2025, AS REQUESTED IN PLAINTIFF’S REQUEST FOR PRODUCTION, SET TWO, NUMBER 39. PRODUCTION SHALL BE MADE WITHIN 30 DAYS OF THE PROOF OF SERVICE OF THE NOTICE OF ENTRY OF ORDER. THE REMAINDER OF THE MOTION TO COMPEL COMPLIANCE IS DENIED. THE COURT IMPOSES NO MONETARY SANCTION.

NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.